

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

SM LINE CORPORATION,

RESPONDENT.

**COMPLAINANT SAMSUNG ELECTRONICS AMERICA, INC.'S
MOTION FOR CONFIDENTIAL TREATMENT**

Complainant Samsung Electronics America, Inc. (“SEA”), by and through its attorneys Holland & Knight LLP, hereby move pursuant to the Federal Maritime Commission’s (“FMC” or the “Commission”) April 21, 2023 Initial Order, 5(b) of the Federal Maritime Commission’s Rules of Practice and Procedure (the “Rules” or individually, “Rule”), 46 C.F.R. 502.5(b), and as authorized by the Presiding Officer in an email communication dated March 18, 2024, for confidential treatment of Complaint’s Motion to Compel and for Sanctions for Spoliation of Evidence (“Motion”).

Confidentiality is necessary because the exhibits to the Motion contain and reference confidential information related to SM Line Corporation and SEA, including SM Line’s

Management Procedure and Improvement Plan. The exhibits to the Motion also reveal the identities and contact information for certain third parties.

Pursuant to Rule 5(b), SEA will file both a confidential and public version of the Motion. For the foregoing reasons, SEA respectfully requests that the materials and exhibits designated as confidential in the Motion, be kept confidential and not disclosed to the public.

Respectfully Submitted,

Dated: March 27, 2024

/s/ Christopher Nolan

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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